

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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JULIA BURGOS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER (first
name unknown) MARTINEZ, Shield No. 14247, POLICE
OFFICER HAMLET DELEON, Shield No. 17778, POLICE
OFFICER JOHN and JANE DOES 1-6 (names and numbers
And ranks of whom are unknown at present, though known to
City Defendant),

Defendants.
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SUMMONS

Index #

Basis of Venue:
Place of Incident

Plaintiff designates
Kings County as place
of Jury Trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 30, 2018

Respectfully submitted,



Law Office Of Ryan Lozar, PC
Attorney for Plaintiff Julia Burgos
305 Broadway, 14th Floor
New York, New York 10007
(310) 867-1562

CITY OF NEW YORK: CORPORATION COUNSEL
100 CHURCH STREET NEW YORK, NY 10007

POLICE OFFICER (f/n/u) MARTINEZ, Shield No. 14247
NYPD 83rd Precinct, 480 Knickerbocker Avenue, Brooklyn, NY 11237

POLICE OFFICER HAMLET DELEON, Shield No. 17778
NYPD 83rd Precinct, 480 Knickerbocker Avenue, Brooklyn, NY 11237

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JULIA BURGOS,

VERIFIED COMPLAINT

Plaintiff,

Index #

-against-

THE CITY OF NEW YORK, POLICE OFFICER (first name unknown) MARTINEZ, Shield No. 14247, POLICE OFFICER HAMLET DELEON, Shield No. 17778, POLICE OFFICER JOHN and JANE DOES 1-6 (names and numbers And ranks of whom are unknown at present, though known to City Defendant),

Defendants.
-----X

Plaintiff **Julia Burgos**, by her attorney, **Ryan Lozar, Esq.**, as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights and negligence action to recover money damages arising out of Defendants' violation of Plaintiff's rights through deprivation of federal and state rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Defendants unlawfully rammed a vehicle in which Plaintiff was a passenger while in pursuit of that vehicle and, as a result, caused her serious and/or permanent physical injury in connection therewith. In so doing, Defendants intentionally, recklessly and negligently deprived Plaintiff of federal and state rights under federal law (Section 1983 incorporating federal constitutional rights), corresponding New York constitutional rights and New York State tort and negligence law. In addition, Defendants kept Plaintiff restrained for days while she was hospitalized for treatment of the physical injuries so occasioned and while doctors indicated that she needed to have the restraints removed for proper medical treatment of her serious medical needs. In spite of this, Defendants declined to remove the restraints and thereby caused Ms. Burgos' delayed receipt of medical care. Under the circumstances, which would have reasonably permitted this timely accommodation, Defendants used undue force upon Ms. Burgos, were deliberately indifferent to her serious medical needs, and therefore deprived her of related federal and state rights and committed state law torts against her. It was not until Plaintiff's release from custody days after June 6, 2017, that she was arraigned and released without restraints so that doctors would operate upon her. Plaintiff's arrest charges were resolved with a single misdemeanor plea for which she received community service.

PARTIES

2. Plaintiff Julia Burgos is a citizen of the United States and resides at 79 Hanson Place, Apt. 2, Brooklyn, NY 11217.
3. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
4. Defendant Police Officer (first name unknown) Martinez, Shield No. 14247, is a citizen of the U.S., a resident of New York State, and is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. Defendant Officer Martinez is being sued in his individual capacity and official capacity.
6. Defendant Police Officer Hamlet DeLeon, Shield No. 17778, is a citizen of the U.S., a resident of New York State, and is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Defendant Officer DeLeon is being sued in his individual capacity and official capacity.
8. Defendant Police Officers John and Jane Does 1-6 are U.S. citizens, residents of New York State, and are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
9. Defendant Officers John and Jane Does 1-6 are being sued in their individual capacities and official capacities.
10. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim upon Defendant City of New York in compliance with Municipal Law Section 50.
11. More than thirty (30) days have elapsed since service of said Notice of Claim was filed, and Defendant City of New York has failed to pay or adjust the claim.
12. Defendant City of New York held a 50(h) hearing examination of Plaintiff Julia Burgos on June 28, 2018.

STATEMENT OF FACTS

13. Julia Burgos is 24 years old.
14. On June 6, 2017, around 3:00pm, Ms. Burgos was near the corner of Wilson Avenue and Green Avenue when a man grabbed and attempted to take her phone.
15. Ms. Burgos did not release the phone and the man fled. At least one onlooker called 911 to report the event.
16. Ms. Burgos was shaken. A man named Charles who saw the incident, asked Ms. Burgos if she was ok and offered to drive her home. Ms. Burgos accepted Charles' offer.

17. As Charles' vehicle pulled out of parking with Ms. Burgos sitting inside as a passenger, police officers arrived in response to the 911 report about the attempted theft of Ms. Burgos' phone.
18. Ms. Burgos spoke to an officer who was on foot from the passenger window. The officer asked Ms. Burgos if she wanted to file a police report. Ms. Burgos stated that she did not want to file a report.
19. An officer talking to Charles through Charles' window ordered Charles to exit the vehicle. Charles asked why, and when the officer did not respond, Charles continued to pull out of parking and Charles drove away.
20. Defendant Martinez and Defendant DeLeon were in an RMP at the time and heard information (on information and belief, over dispatch) regarding Charles' departure.
21. On information and belief, Defendant Martinez was driving the RMP and another Doe Defendant may have been in the RMP with Martinez and DeLeon.
22. Defendants' RMP pulled behind Charles' vehicle some blocks later and signaled to Charles to stop.
23. When Charles did not immediately stop, Defendants rammed Charles' vehicle with their RMP three different times.
24. NYPD Patrol Guide Procedure No. 221-15 on Vehicle Pursuits states that vehicle pursuits are only justified based on factors including the nature of the offense and location and population density. "Department policy requires that a vehicle pursuit be terminated whenever the risks to . . . the public outweigh the danger to the community if suspect is not immediately apprehended." In addition, "ramming" is prohibited in no uncertain terms.
25. When Defendants pursued and rammed Charles' vehicle three times, their intentional, reckless and negligent actions were unreasonable as per relevant factors including, but not limited to:
 - a. the nature of the alleged offense they were investigating (Ms. Burgos' encounter with the man who tried to take her phone, which Ms. Burgos told police she did not wish to file a report about because she was fine),
 - b. the location and population density where Defendants' pursuit and ramming took place (a heavily populated area with a great deal of traffic),
 - c. Defendants' rate of speed, and
 - d. Defendants' continuation of their pursuit and ramming despite supervisory instruction to the contrary because of the above-named and other factors.

26. When Defendants' rammed Charles' vehicle the third time, Charles' vehicle struck a third-party vehicle in motion and a third-party parked vehicle, and stopped.
27. Ms. Burgos, who sat as a passenger in Charles' vehicle during the ramming impacts and the other impacts they caused, suffered serious physical injuries as a result of Defendants' intentional, reckless and negligent pursuit and ramming of Charles' vehicle using their RMP. These injuries included injuries to Ms. Burgos' head and face, eye, neck, esophagus, trachea and back.
28. When Charles' vehicle stopped, he left the scene. Ms. Burgos did not.
29. When Defendants Martinez, DeLeon and Does were questioned at the scene by an NYPD Doe Supervisor regarding why they had not halted their pursuit actions as instructed by supervisors and/or dispatch, the officers did not know that Ms. Burgos was within earshot and could understand. When Ms. Burgos indicated that she understood the conversation, Defendants moved away to continue the conversation.
30. Defendants' intentional disregard for Plaintiff and others in their pursuit and ramming of the Charles vehicle is demonstrated by the totality of the circumstances including the background of an attempted but concluded theft of Ms. Burgos' phone, Defendants' speed, the neighborhood, Defendants' violation of protocols, Defendants' violation of contemporary instructions given, and more. No reasonable officer would think it reasonable to pursue and ram the Charles vehicle as Defendants' did under these circumstances.
31. Ms. Burgos was placed in restraints and transported to Brookdale Hospital's emergency ward, where she remained admitted for three days. During that time, Defendants kept Ms. Burgos in restraints without need. Contemporaneous police paperwork suggests that Defendants initially thought to charge Ms. Burgos with reckless endangerment despite the fact that she was not driving Charles' vehicle and had only been a passenger.
32. Eventually, Defendants instead claimed that they found fraudulent credit cards in Charles' vehicle, and charged Ms. Burgos with their constructive possession under various felony and misdemeanor offenses as a passenger in the vehicle.
33. While Ms. Burgos was at Brookdale, doctors indicated that Ms. Burgos needed emergency surgery on her eye. However, doctors would not perform the prescribed surgery while Ms. Burgos was restrained, and Defendants would not remove the restraints. Ms. Burgos' required surgery was therefore delayed.
34. It was possible for Defendants to reasonably accommodate Ms. Burgos' need to have her restraints removed in order to receive necessary and more timely medical treatment of her

injury. Defendants did not so reasonably accommodate Ms. Burgos's serious medical needs and thus demonstrated themselves to be deliberately indifferent thereto.

35. Brookdale discharged Ms. Burgos with the instruction that she report to New York Presbyterian's Cornell Weill ophthalmology center for the required surgery immediately after her release and restraint removal.
36. Ms. Burgos was arraigned, released and immediately visited the emergency department about her emergency eye surgery, which occurred the next day.
37. Ms. Burgos later had a second surgery on her eye in late 2017, and had extremely regular medical appointments all throughout the last half of that year in connection with her eye injury.
38. Ms. Burgos suffered permanent vision loss and limitations as a result of the eye injury caused by Defendants' intentional, reckless and negligent acts.
39. Ms. Burgos did not have these injuries and damages prior to the June 6, 2017, incident that is the subject of this action and Defendants' intentional, reckless and negligent actions as alleged.
40. Ms. Burgos has been unable to continue in her pre-incident profession as a hair dresser as she had as a result of the permanent eye injury, as that work requires intricate hand-eye coordination.
41. Ms. Burgos had to make numerous court appearances to answer for the many felony and misdemeanor charges brought by Defendants against her after it became clear that she could not be blamed for reckless endangerment, and in order to justify their actions (including the fact, length and circumstances (restraints) of their pre-arraignment detention of Ms. Burgos). In late 2017, Ms. Burgos accepted a compromise plea to one misdemeanor charge in exchange for dismissal of many felonies and many other misdemeanors. Ms. Burgos received and completed a community service sentence.
42. Plaintiffs filed a notice of claim on December 24, 2014.

FIRST CAUSE OF ACTION

NEGLIGENCE

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in all paragraphs in this complaint, supra and infra, with the same force and effect as if more fully set forth at length herein.
44. Defendants owed a duty of care to plaintiff.

45. Defendants breached that duty of care through their actions during the pursuit and ramming.
46. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
47. All of the foregoing occurred without any fault by plaintiff.
48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

ASSAULT

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in all paragraphs of this complaint, supra and infra, with the same force and effect as if more fully set forth at length herein.
50. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did violent and/or menacing acts which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.
51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
52. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

BATTERY

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in all paragraphs of this complaint, supra and infra, with the same force and effect as if more fully set forth at length herein.
54. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner acted against plaintiff during the pursuit and ramming without her consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

55. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
56. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in all paragraphs of this complaint, supra and infra, with the same force and effect as if more fully set forth at length herein.
58. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FIFTH CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLY EXCESSIVE DETENTION

(Section 1983 (4th Amendment and due process rights) and equivalent New York State constitutional and tort law)

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in all paragraphs of this complaint, supra and infra, with the same force and effect as if more fully set forth at length herein.
60. The acts and conduct of the defendants constitute unreasonably excessive detention under Section 1983 as well as New York state law. Due to Plaintiff's need for days-long hospitalization, which was the result of Defendants' infliction of her injuries needing treatment, Plaintiff's pre-arraignment detention extended nearly four days before she was arraigned and released.
61. During this time, Defendants knew that Plaintiff did not consent to her confinement by restraints, that the restraints did so confine her (both literally and by extending her hospital stay when doctors asked that they be removed for Plaintiff to receive more timely treatment), that Defendants intended Plaintiff's confinement (as shown by, among other things, Defendants' refusal of the doctors' request), and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

62. The detention was unreasonably excessive because it served no government aim, could have been avoided through reasonable accommodation and, as a result, was imposed upon Plaintiff to the extent it was for improper purpose.
63. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE FROM DELIBERATE INDIFFERENCE TO SERIOUS MEDICAL NEEDS (Section 1983 (8th Amendment and due process rights) and equivalent New York State constitutional and tort law)

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in all paragraphs of this complaint, supra and infra, with the same force and effect as if more fully set forth at length herein.
66. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD knew that Plaintiff's treating physicians prescribed immediate surgery for her injuries and requested that Plaintiff's restraints be removed.
67. Defendants nonetheless refused to remove Plaintiff's restraints and permit more timely medical treatment of her serious medical needs.
68. Under the circumstances, Defendants could have reasonably accommodated Plaintiff's doctors' requests and facilitated the more timely prescribed surgery, but did not.
69. With respect to Plaintiff's claim that she was deprived a federal right, because Plaintiff was a pretrial detainee in June 2017, the 8th Amendment's standard for deliberate indifference to serious medical need applies to her federal claim through the due process clause.
70. When the state takes a person into its custody and holds her there against her will, the federal and New York state constitutions impose upon the state a corresponding duty for her well-being.
71. Defendants did not meet their duty of care for Plaintiff's well-being under this constitutional standard for the reasons stated herein.
72. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE FROM EXCESSIVE FORCE (Section 1983 (4th Amendment and due process protections) and corresponding New York State constitutional and tort law)

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in all paragraphs of this complaint, supra and infra, with the same force and effect as if more fully set forth at length herein.
75. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD knew that their intentional pursuit and ramming of Charles' vehicle—with a passenger (Ms. Burgos) inside and under the circumstances alleged herein—was established to be unlawful and objectively unreasonable.
76. The gravity of the risk of bodily harm that Defendants' intentional and reckless actions posed to Ms. Burgos—and which in fact materialized—far outweighed any threat to the public posed by Charles' vehicle or Ms. Burgos under the circumstances as described.
77. A reasonable jury could plausibly find that Defendants' actions in pursuing and ramming Charles' vehicle under these circumstances was a deliberate use of deadly force against the Charles vehicle when it and its occupants posed no risk—immediate or otherwise—to others. In so finding, a reasonable jury could plausibly find that Defendants accordingly deprived Ms. Burgos of her federal right to be free from excessive force, and violated her equivalent New York State rights under the NYS constitution and tort law.
78. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
79. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

FAILURE TO INTERVENE

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in all paragraphs of this complaint, supra and infra, with the same force and effect as if more fully set forth at length herein.

81. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
82. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had reasonable opportunity to do so, given the length of time that Defendants' actions went on, i.e., pursuit, ramming, refusal to reasonably accommodate restraint removal.
83. As a result of the foregoing, Defendants failing to intervene caused plaintiff to suffer the deprivation of her federal and state rights as herein described.
84. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
85. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

86. The plaintiff repeats, reiterates and realleges each and every allegation contained in all paragraphs of this complaint, supra and infra, with the same force and effect as if more fully set forth at length herein.
87. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, intentionally and/or negligently engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
88. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
89. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

TENTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in all paragraphs of this complaint, supra and infra, with the same force and effect as if more fully set forth at length herein.

91. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
92. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions.
93. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
94. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
95. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested and prosecuted.
96. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE JULIA BURGOS, Plaintiff, demands a judgment against the Defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages, attorneys fees, expenses, costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
August 30, 2018

Respectfully submitted:

By: 

Law Office Of Ryan Lozar, PC.
Attorney for Plaintiff
305 Broadway, 14th Floor
New York, New York 10007
(310) 867-1562

CITY OF NEW YORK: CORPORATION COUNSEL
100 CHURCH STREET NEW YORK, NY 10007

POLICE OFFICER (f/n/u) MARTINEZ, Shield No. 14247
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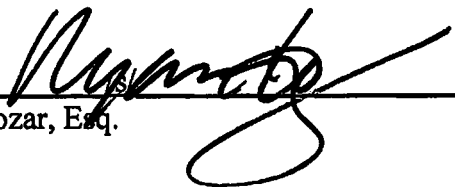
POLICE OFFICER HAMLET DELEON, Shield No. 17778
NYPD 83rd Precinct, 480 Knickerbocker Avenue, Brooklyn, NY 11237

ATTORNEY'S VERIFICATION

RYAN LOZAR, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the LAW OFFICE OF RYAN LOZAR, PC. I have read the annexed VERIFIED COMPLAINT and know the contents thereof, and the same is true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that I have reviewed various records—for example, the NYPD Patrol Guide and certain case-specific documents—providing the basis for allegations supplementing information provided by my client.

DATED: New York, New York
August 30, 2018



Ryan Lozar, Esq.